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Case Number: NAIH-2005-7/2023.
Subject: Decision partially granting the request
Previous case number: NAIH-6443/2022.

D E C I S I O N

The National Authority for Data Protection and Freedom of Information (hereinafter: Authority) before [...] (address: [...]; hereinafter: Applicant) at the request of the Applicant against [...] (headquarters: [...]; hereinafter: Respondent 1) regarding the unlawful processing of the Applicant's personal data, as well as the improper fulfillment of the access request, and against [...] (headquarters: [...]; hereinafter: Respondent 2) (Respondent 1 and Respondent 2 hereinafter: Respondents) regarding the unlawful transfer of the Applicant's personal data, in the initiated data protection authority procedure, the Authority makes the following decisions:

I.

The Authority, partially granting the Applicant's request, establishes that Respondent 1 has violated Article 6(1) and Article 15(1) of Regulation (EU) 2016/679 of the European Parliament and of the Council (hereinafter: GDPR) concerning the protection of natural persons with regard to the processing of personal data and on the free movement of such data, as well as the repeal of Directive 95/46/EC (General Data Protection Regulation).

II. The Authority, partially granting the Applicant's request regarding the violations established in point I, finds Respondent 1 liable.

III. The Authority rejects the Applicant's request to establish that Respondent 2 unlawfully transferred the inheritance transfer order containing the Applicant's personal data to Respondent 1.

IV. The Authority, partially granting the Applicant's request, establishes that Respondent 2 has violated Article 15(1) of the GDPR.

V. The Authority, partially granting the Applicant's request regarding the violation established in point IV, finds Respondent 2 liable.

VI. The Authority grants the Applicant's request to order Respondent 1 to delete the personal data at Respondent 1, and instructs Respondent 1 to delete the personal data of the Applicant processed for the purpose of enforcing the Applicant's claim from the claims management register, and to confirm the deletion to the Authority within 30 days from the date of the decision becoming final.

The Authority warns Respondent 1 that, pursuant to Section 61(6) of the Infotv., the data subject to the disputed data processing cannot be deleted or destroyed until the expiration of the deadline for initiating legal action against the decision or until the final decision of the court in the case of initiating administrative litigation.

There is no administrative remedy against this decision, but it can be challenged in administrative litigation with a lawsuit addressed to the Metropolitan Court within 30 days from the communication. The lawsuit must be submitted electronically to the Authority, which will forward it along with the case documents to the court. A request for a hearing must be indicated in the lawsuit. The complete personal

For those not entitled to exemption from fees, the administrative court fee is HUF 30,000, and the subject matter of the case is subject to the fee recording right. Legal representation is mandatory in proceedings before the Metropolitan Court.

INDOKOLÁS

I. Subject of the proceedings

(1) The Applicant's request for an authority procedure regarding data protection was received by the Authority on July 21, 2022. In the request, the Applicant stated that her grandmother, [...] (birth name: [...]; place and date of birth: [...]; mother's name: [...]) passed away without leaving a will. The inheritance proceedings were conducted by the notary public, [...] (the predecessor of Respondent 2). According to the inheritance transfer decree dated [...] and which became final on the same day, the notary public transferred the inheritance to the Applicant based on the determination of the interim acquisition of rights by the testator's daughter, that is, the Applicant's mother, [...] (place and date of birth: [...]; mother's name: [...]), with full effect based on a gift established by agreement.

(2) On March 30, 2022, the Applicant received a payment request from Respondent 1 as the legal heir of [grandmother], demanding that the outstanding debt of [...] HUF be paid to Respondent 1 within 5 days, otherwise legal proceedings could be initiated against her. In the payment request, Respondent 1 referred to the text of the inheritance transfer decree.

(3) Subsequently, the Applicant submitted a request for access to the Respondents and a deletion request to Respondent 1; however, she found the responses received to be unsatisfactory.

(4) According to the Applicant, Respondent 1 unlawfully processes her personal data, as she is not the legal heir of the testator according to the inheritance transfer decree, and in her view, Respondent 1 cannot be considered an estate creditor since neither she nor her predecessor declared the claim in the inheritance proceedings, which concluded with the finalization of the inheritance transfer decree [...]. Furthermore, the Applicant argues that Respondent 1 acted unlawfully by not deleting her personal data upon her request.

(5) The Applicant also claims that Respondent 1 failed to fulfill its obligation to respond, as "if the legal basis for data processing is Respondent 1's legitimate interest, then a prior balancing of interests must be conducted, which must include determining the legitimate interest, the impact on the data subject, as well as whether the data processing is necessary and proportionate, and it must be weighed whether the legitimate interest or the rights of the data subject take precedence."

(6) The Applicant asserts that Respondent 2 unlawfully forwarded her personal data to Respondent 1 and also failed to fulfill its obligation to respond, as "partly it identified legitimate interest as the legal basis for data transfer, but then a prior balancing of interests must be conducted, which must include determining the legitimate interest, the impact on the data subject, as well as whether the data processing is necessary and proportionate, and it must be weighed whether the legitimate interest or the rights of the data subject take precedence."

(7) The Applicant requested that the Authority establish that Respondent 1 is unlawfully processing her personal data and that it has not fulfilled its obligation to respond based on the above reasons. She also requested that the Authority order the deletion of her personal data and initiated the imposition of a data protection fine.

(8) The Applicant requested that the Authority establish that Respondent 2 unlawfully forwarded the inheritance transfer decree containing her personal data to Respondent 1. She further requested that

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to establish that, based on the above reasoning, Respondent 2 has failed to comply with the obligation to respond. Additionally, it requested the imposition of a data protection fine.

II. Facts

(9) The Applicant's grandmother, [...] [...] passed away without leaving a testament. The probate proceedings were conducted by [...] notary public, [...], who was the predecessor of Respondent 2. According to the probate distribution order numbered [...] dated [...] and which became final on the same day, the estate consisted of two ownership shares in agricultural land: the ownership share of the property with a cultivation type of vineyard, registered under the land registry number [...] with an area of [...] m², valued at [...] AK, and the ownership share of the property classified as arable land, registered under the land registry number [...] with a total area of [...] ha [...] m², valued at [...] AK. The value of the ownership share in the vineyard was [...] HUF according to the probate distribution order, and the value of the ownership share in the arable land was [...] HUF. The ownership shares were transferred to the Applicant by the acting notary public based on the establishment of an intermediate acquisition by inheritance in favor of the testator's daughter, that is, the Applicant's mother, [...] under the title of a gift based on an agreement.

(10) Respondent 1 acquired a claim against the late grandmother of the Applicant for the amount of [...] HUF principal and its accessories, consisting of water and sewerage fees, based on a cession agreement concluded with [Company 1] on July 1, 2021, the original creditor being [Company 2]. The claim was transferred between [Company 2] and [Company 1] on October 7, 2019.

(11) Respondent 1 sent a notice regarding the assignment, which included a performance instruction, to [the Applicant's grandmother] on August 4, 2021, in the form of a registered letter, which was returned to him marked "not sought." Subsequently, on September 14, 2021, Respondent 1 again sent the notice in both regular and registered letter forms.

(12) In order to collect the claim, on September 17, 2021, Respondent 1 made an inquiry to the personal data and address registry to obtain the possibly changed residence or temporary address of [the Applicant's grandmother]. On November 17, 2021, Respondent 1 received information from the authority maintaining the personal data and address registry that [the Applicant's grandmother] [...] had passed away. With this information, Respondent 1 contacted the relevant municipality to obtain the name of the notary public conducting the probate proceedings, to which he received a response on January 25, 2022.

(13) On the same day, Respondent 1 submitted a creditor's claim to Respondent 2, attaching a copy of the assignment notice, and requested that if a final probate distribution order had already been issued in the case, a copy of it be provided to him. To support his creditor claim, he outlined the origin of the claim, how he acquired it, and its amount, and attached the assignment notice and the information received from the notary.

(14) Respondent 2 complied with Respondent 1's request and provided him with a copy of the probate distribution order, which Respondent 1 received on March 28, 2022, according to which the estate was fully transferred to the Applicant based on a gift agreement.

(15) On March 30, 2022, Respondent 1 sent a payment demand to the Applicant as the legal heir of [his grandmother], in which he called upon her to pay the outstanding debt of [...] HUF to Respondent 1 within 5 days, otherwise legal proceedings could be initiated against her. In the payment demand, Respondent 1 referred to the text of the probate distribution order.

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(16) Subsequently, on April 14, 2022, Respondent 1 received a letter from the Applicant referencing Section 14 of Act CXII of 2011 on the Right to Informational Self-Determination and Freedom of Information (hereinafter: Infotv.), in which the Applicant requested information regarding the personal data processed by Respondent 1, including their source, the purpose of data processing, the legal basis, duration, the name and address of the data processor, and all activities related to data processing, as well as the legal basis and recipient in the case of data transfer. The Applicant specifically requested information regarding the content of the inheritance transfer order, including the source of the personal data contained therein and the legal basis for the processing of such data. The Applicant also requested that Respondent 1 delete their personal data, as its processing is unlawful.

(17) In its response dated April 22, 2022, Respondent 1 stated that it acquired the claim through assignment from [Company 1] on July 1, 2021, which does not require the debtor's consent. Respondent 1 demonstrated to Respondent 2 that it is entitled to access the inheritance transfer order, which was provided to Respondent 2, indicating that the Applicant is the legal heir of the deceased, and thus is obliged to settle the amount communicated in the letter, and that the processing of personal data does not require the Applicant's consent in light of the above.

(18) The notary public conducting the inheritance proceedings indicated the following applicable laws in the inheritance transfer order: Section 7:55 (1) of Act V of 2013 on the Civil Code (hereinafter: Civil Code), Section 83 of Act XXXVIII of 2010 on Inheritance Proceedings (hereinafter: Hetv.), Section 6:235 of the Civil Code, and Section 94 (2) of the Hetv. Respondent 1 explained that according to the commentary on Section 94 of the Hetv., in the case of a class agreement, the legal basis for the transfer is always inheritance, meaning that based on the legal provision specified in the notarial inheritance transfer order, the legal basis for the transfer concerning the Applicant could only be inheritance, which is further supported by Respondent 1's position that the acting notary fully transferred the inheritance to the Applicant. According to Respondent 1, a full transfer of inheritance can only occur to the heir, thus considering the Applicant as the heir of the late [grandmother]. Consequently, it concluded that it lawfully processes the Applicant's personal data.

(19) According to a screenshot submitted by Respondent 1 in the administrative procedure regarding its claims management records, it only processes the personal data of the Applicant that were indicated in the inheritance transfer order, as well as information regarding the claim against the late [grandmother]. According to Respondent 1's statement, the legal basis for its data processing is Article 6 (1) (f) of the GDPR, and the purpose of data processing is debt collection, which includes the purchase, recording, and collection of claims—contacting and maintaining contact—outside of legal proceedings, initiating and conducting legal proceedings, entering into individual payment agreements, identifying, recording, and accounting for payments.

(20) Respondent 1 claims a legitimate business interest in collecting the claims it has purchased from their debtors.

(21) Respondent 1 retains the Applicant's personal data for 8 years from the closure of the case in accordance with the provisions of Section 169 of Act C of 2000 on Accounting.

(22) Respondent 1 stated that it did not comply with the Applicant's deletion request because the debt collection has not been completed, and under Article 17 (3) (b) of the GDPR, the deletion request cannot be fulfilled if the processing of personal data is required by law.

(23) However, considering that the Applicant's access request was not fully answered by Respondent 1, Respondent 1...

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waives any further enforcement against it and considers the matter closed, removing it from its records. It emphasized that it did not gain any financial benefit as a result of the case.

(24) The Applicant submitted a request for access to Respondent 2, stating that the inheritance transfer decree contained personal data, and therefore requested that Respondent 2 indicate the legal basis on which the inheritance transfer decree was issued and the personal data contained therein was sent to a third party. Furthermore, the Applicant requested that "if you were contacted regarding the late [grandmother's] debt, please send me the balancing of interests concerning me, according to which my personal data was released as an interested party not listed as an heir in the decree."

(25) In its decree dated May 19, 2022, Respondent 2 informed the Applicant that Respondent 1 had filed a creditor claim against it, to which it attached the assignment notice and declaration of succession signed with the predecessor. As the legal basis for the transmission of the inheritance transfer decree and the personal data contained therein, it indicated Article 6(1)(c) of the GDPR, i.e., its legal obligation, referring to Section 6(1)(e) and Section 90 of the Act on Inheritance, which stipulates that the inheritance transfer decree or other decree concluding the procedure must be

communicated to the interested parties in the inheritance procedure by delivery. In its decree, Respondent 2 stated that among those interested in the inheritance procedure are those who are interested in the inheritance, and those interested in the inheritance are those who are listed as heirs, as well as those who have acted in the procedure as inheritance creditors, claimants, or entitled to a forced share, etc.

(26) Based on all of this, Respondent 2 sent the inheritance transfer decree in the inheritance procedure conducted by the predecessor notary based on the likelihood of the creditor's legal interest, which decree was sent not only to the interested party as an heir but also to those interested in the inheritance procedure. The inheritance creditor has a legal interest in knowing the estate of the deceased and the identity of the heir in order to initiate proceedings for the settlement of the debt. The Applicant objected that in connection with this, related to the enforcement of Respondent 1's legitimate interest, Respondent 2 did not prepare a balancing of interests regarding the data transmission.

(27) According to the Applicant's position, there cannot be a legitimate interest for Respondent 2 to transmit the personal data of a non-heir party to Respondent 1, and that Respondent 1 should delete such data despite a request to that effect.

(28) In response to the Authority's call, Respondent 2 explained that after the closure of inheritance proceedings – similarly to claims filed during the ongoing procedure – persons acting as inheritance creditors can substantiate their claims with assignment documents, contracts, etc. If the procedure has already been closed at the notary, then within the framework of the inheritance procedure, the creditor can no longer enforce their inheritance creditor claim; however, they have the opportunity to enforce their claim in civil litigation or non-litigious proceedings – e.g., by way of a payment order – with knowledge of the successors.

(29) An inheritance creditor can only act in the inheritance procedure if they become aware of the deceased's death during the ongoing inheritance procedure. If the death of the deceased comes to their knowledge only later, they can only then inquire about the identity of the successors and the estate assets. The creditor can only enforce their claim in civil litigation or non-litigious proceedings if they know the identity of the heirs and the estate assets, in accordance with the provisions of Section 7:96(1) of Act V of 2013 on the Civil Code (hereinafter: Civil Code), which states that the heir is liable to creditors for the estate's debts with the estate's assets and their benefits. If, at the time of enforcing the claim, the estate's assets or benefits are not in the heir's possession, the heir...

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is liable to the extent of his inheritance with his other assets. According to Section 7:94 (1) c) of the Civil Code, the debts of the testator are classified as estate debts.

(30) The Respondent 2 further stated that any estate creditor who does not declare their creditor claim during the ongoing estate proceedings cannot contest the satisfactions made up to the declaration in terms of maintaining the order and the proportion of satisfactions for those belonging to their group.

III. Applicable Legislation

According to Article 2 (1) of the GDPR, the GDPR must be applied to the data processing in this case.

GDPR Article 6 (1) c) and f): The processing of personal data is lawful only if at least one of the following applies:

c) the processing is necessary for compliance with a legal obligation to which the data controller is subject;

f) the processing is necessary for the purposes of the legitimate interests pursued by the data controller or a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, particularly if the data subject is a child.

The first subparagraph f) does not apply to the processing of personal data carried out by public authorities in the performance of their tasks.

GDPR Article 15 (1): The data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed, and, if that is the case, access to the personal data and the following information:

- a) the purposes of the processing;
- b) the categories of personal data concerned;
- c) the recipients or categories of recipients to whom the personal data have been or will be disclosed, including in particular recipients in third countries and international organizations;
- d) where applicable, the envisaged period for which the personal data will be stored, or, if that is not possible, the criteria used to determine that period;
- e) the existence of the right to request from the data controller rectification of personal data concerning them, erasure of such data, or restriction of processing, and to object to such processing;
- f) the right to lodge a complaint with a supervisory authority;
- g) if the data have not been collected from the data subject, any available information as to their source;
- h) the existence of automated decision-making, including profiling, referred to in Article 22 (1) and (4), and at least in those cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

GDPR Article 58 (2) b) and i): Acting in its corrective capacity, the supervisory authority:

- b) shall issue a reprimand to the data controller or processor if their processing activities have infringed the provisions of this Regulation;
- g) shall instruct the data controller or processor to bring processing operations into compliance with this Regulation – in a specified manner and within a specified time frame, where appropriate;
- g) shall order the rectification or erasure of personal data or restriction of processing in accordance with Articles 16, 17, and 18, as well as Article 17 (2).

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In accordance with paragraph 7 and Article 19, it orders the notification of the recipients with whom the personal data has been shared;

- i) imposes an administrative fine in accordance with Article 83, depending on the circumstances of the case, in addition to or instead of the measures mentioned in this paragraph.

GDPR Article 77 (1): Without prejudice to other administrative or judicial remedies, every data subject has the right to lodge a complaint with a supervisory authority – particularly in the Member State of their habitual residence, place of work, or the place of the alleged infringement – if the data subject believes that the processing of personal data concerning them infringes this Regulation.

Infotv. § 2 (2): The processing of personal data falling under the (EU) 2016/679 European Parliament and Council Regulation (hereinafter: General Data Protection Regulation) shall be governed by the General Data Protection Regulation with the supplements specified in Chapters III-V and VI/A, as well as in points 3, 4, 6, 11, 12, 13, 16, 17, 21, 23-24 of § 3, in paragraph (5) of § 4, in paragraphs (3)-(5), (7) and (8) of § 5, in paragraph (2) of § 13, in § 23, in § 25, in paragraphs (3), (4) and (6) of § 25/G, in paragraph (2) of § 25/H, in paragraph (2) of § 25/M, in § 25/N, in paragraph (1) of § 51/A, in §§ 52-54, in paragraphs (1)-(2) of § 55, in §§ 56-60, in paragraphs (1)-(3) and (6) of § 60/A, in point a) and c) of paragraph (1) of § 61, in paragraphs (2) and (3) of § 61, in point b) of paragraph (4) and in paragraphs (6)-(10) of § 61, in §§ 62-71, in § 72, in paragraphs (1)-(5) of § 75, in § 75/A and in the 1st Annex.

According to § 60 (1) of the Infotv., in order to ensure the enforcement of the right to the protection of personal data, the Authority may initiate a data protection authority procedure ex officio. The data protection authority procedure shall be governed by the provisions of Act CL of 2016 on General Administrative Procedure (hereinafter: Ákr.) with the supplements specified in the Infotv. and the deviations according to the General Data Protection Regulation.

Infotv. § 61 (6): Until the expiration of the deadline for initiating a lawsuit against the decision or, in the case of initiating an administrative lawsuit, until the court's final decision, the disputed data related to the data processing may not be deleted or annulled.

Infotv. § 75/A: The Authority exercises the powers specified in paragraphs (2)-(6) of Article 83 of the General Data Protection Regulation, taking into account the principle of proportionality, particularly by addressing the first-time violation of the provisions regarding the processing of personal data – as defined in legislation or in mandatory legal acts of the European Union – primarily by warning the data controller or processor in accordance with Article 58 of the General Data Protection Regulation.

The data protection authority procedure shall be governed by the provisions of Act CL of 2016 on General Administrative Procedure (hereinafter: Ákr.) with the supplements specified in the Infotv. and the deviations according to the General Data Protection Regulation.

Hetv. § 2 (1) The probate procedure is a civil non-contentious procedure, which shall be governed by the rules of Act CXXX of 2016 on Civil Procedure (hereinafter: Pp.) with deviations arising from the specific characteristics of civil non-contentious procedures, unless otherwise provided by this law. The provisions of Act XLV of 2008 on Certain Notarial Non-Contentious Procedures (hereinafter: Kjnp.) shall not apply to the probate procedure unless otherwise provided by this law.

(2) In the probate procedure, the notary's procedure has the same effect as that of the first-instance court.

Hetv. § 6 (1) e, l) and n) points:

e) probate creditor: who

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ea) the claim for the transfer of the inheritance burden, as well as the payment of the deceased's debts, shall be submitted by the person presenting it in the inheritance proceedings,

eb) a claim based on an obligation regarding the asset belonging to the inheritance—asserting the deceased's obligation to transfer the asset to them—shall be made in the inheritance proceedings;

l) interested in inheritance: the heir, as well as anyone who has participated in the proceedings as an inheritance creditor, claimant, or entitled to a reserved portion, as well as the executor of the will and the estate administrator according to Regulation (EU) No. 650/2012 of the European Parliament and of the Council, and the guardianship authority in the context of submitting a request for protective measures or legal remedies;

n) interested as an heir: anyone who participates in the proceedings as an heir, including those who have been granted property in a legacy or gift in case of death by the deceased, as well as the substitute heir and the property substitute heir;

Section 90 (1) The rulings made at the hearing shall be announced on the day of the hearing.

(2) The following shall be communicated by delivery:

a) - except for the provisions in paragraph (3) - the ruling on the transfer of the inheritance or any other ruling concluding the proceedings

aa) to those interested in the inheritance proceedings,

ab) if there is a fetus, minor, person under guardianship affecting capacity, or a person residing in an unknown location among the interested parties, then to the guardianship authority;

b) the ruling made at the hearing to the interested party who was not duly summoned to the hearing;

c) the ruling made at the hearing that relates to the setting of a new hearing date, or against which a separate appeal is allowed, to the interested party who did not appear at the hearing - despite being duly summoned;

d) the ruling made outside of the hearing to the interested parties.

Section 94 (1), (2): (1) The inheritance shall be transferred based on the division agreement as a title of inheritance. Such an agreement shall not be approved by the notary with a formal ruling, but the notary shall issue a ruling on the transfer of the inheritance in accordance with the agreement, or if the division agreement is contrary to law, the inheritance shall be transferred regardless of the division agreement.

(2) If the interested heir in the inheritance proceedings transfers the entire or part of the inherited property acquired by them through inheritance, a gift in case of death, a property legacy, or a trust

established by a testamentary disposition to another person interested in the inheritance, a substitute heir, or an inheritance creditor, or acknowledges a claim regarding an asset that was originally considered part of the inheritance, the notary shall incorporate these legal declarations into an agreement and decide on the approval of the agreement. If the notary approves this agreement, the inheritance shall be transferred to the party acquiring it according to the agreement, and in the case of transfer, the intermediary acquisition of the transferring heir's interest (inheritance, gift in case of death, property legacy, trust established by a testamentary disposition) shall be established according to the appropriate title.

Civil Code Section 7:55 [Inheritance of Descendants]

(1) The statutory heir is primarily the child of the deceased.

Civil Code Section 7:94 (1):

(1) Inheritance debts

a) the costs of the deceased's proper burial;

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b) the necessary costs associated with the acquisition, securing, and management of the inheritance (hereinafter: inheritance costs), as well as the costs of the inheritance proceedings;

c) the debts of the testator;

d) obligations based on the reserved portion;

e) obligations based on the legacy and the bequest.

Section 162 (5) of Act CXXX of 2016 on Civil Procedure (hereinafter: Pp.): Information about the proceedings may be provided to persons and entities other than those specified in paragraphs (1)-(4) - except for information regulated by the law on the status and remuneration of judges - to those who have a legal interest in the conduct of the proceedings or its outcome. The presiding judge of the court conducting the proceedings shall, after verifying the legal interest, permit the inspection of documents, the preparation of copies or extracts thereof, and the provision of necessary information.

Section 323 (3) of the Pp.: A public document proves with full evidentiary force

a) that the issuer has taken the action contained therein or has made a decision with the content contained therein,

b) the reality of the data and facts certified by the public document,

c) the making of the declaration contained in the public document, its time and manner.

According to Section 169 (1)-(2) of Act C of 2000 on Accounting (hereinafter: Sztv.):

(1) The economic operator is obliged to retain the annual report, the business report, as well as the inventory, evaluation, general ledger extract, and other records supporting them in a readable form for at least 8 years.

(2) Accounting documents supporting the accounting records directly and indirectly (including general ledger accounts, analytical and detailed records) must be retained in a readable form for at least 8 years, in a manner that can be retrieved based on references to accounting notes.

According to Section 166 (1) of the Sztv., an accounting document is any document issued or prepared by the economic operator or issued or prepared by a natural person or another economic operator in business or other relations with the economic operator (invoice, contract, agreement, statement, credit institution document, bank statement, statutory provision, or any other document that can be classified as such) - regardless of its printing or other production method - which supports the accounting of the economic event (its record).

IV. Decision

IV.1. Lawfulness of the data processing of the Applicant 2, the legal basis for data processing

(31) The Authority considers it necessary to first examine whether the data transfer by Applicant 2 to Applicant 1 was lawful due to the chronological order of the data processing contested by the Applicant.

(32) Applicant 2 exercises public authority during inheritance proceedings, thus, in accordance with Article 6 (1) of the GDPR, it cannot base its data processing on its own or a third party's legitimate interest during the exercise of public authority; the legal basis for the data processing necessary for the performance of these duties may be Article 6 (1) (c) or (e) of the GDPR.

(33) According to Article 6 (1) (c) of the GDPR, data processing is lawful if it is necessary for compliance with a legal obligation to which the data controller is subject. According to Section 2 (1) of the Hetv., inheritance proceedings are subject to the provisions of the Hetv. unless otherwise provided by the Hetv.

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provides that the rules of the Civil Procedure Act (Pp.) must be applied with deviations arising from the specific characteristics of non-litigious civil proceedings. Considering that the Act on Inheritance (Hetv.) does not contain specific rules regarding the access to documents, the rules of the Pp. shall apply. According to Section 162 (5) of the Pp., information about the proceedings can be provided to those who have a legal interest in the conduct of the proceedings or its outcome. The presiding judge of the court, or in inheritance proceedings, the notary public – after verifying the legal interest associated with this – shall permit the inspection of documents, the preparation of copies or extracts thereof, and the provision of necessary information.

(34) This means that if a third party, typically a creditor, proves that they have a claim against the deceased, then based on Section 162 (5) of the Pp., the acting notary must provide access to the inheritance distribution order, as the creditor can enforce their claim against the heirs in this manner. The Authority finds it necessary to note here that the mere fact that a creditor did not register as an inheritance creditor during the inheritance proceedings, for example, because they were unaware that the debtor had died, does not result in the loss of rights, meaning that the claim can still be enforced in civil litigation or non-litigious proceedings, provided that in this case, they cannot contest the satisfactions made to other inheritance creditors that occurred before their registration, in terms of maintaining the order and the proportion of satisfaction for those belonging to the group.

(35) The Authority holds the view that Applicant 1 has adequately demonstrated to Applicant 2 that they had a claim against the late [Applicant's grandmother], meaning that they had a legal interest in the outcome of the proceedings, as they can enforce their claim against the deceased's heir. The fate of the inheritance can be understood from the inheritance distribution order as a whole, namely who received what share of the inheritance, who renounced the inheritance or a part thereof, and to whom the inheritance was distributed. With this information, the creditor can decide whether they wish to enforce their claim through civil litigation or by means of a payment order.

(36) To enforce the claim legally, it is necessary to know the debtor's identification data and address [Pp. Section 170 (1) b); Fmhtv. Section 20 (1) a)]. Notaries are not authorized to decide on behalf of creditors against whom they can enforce their claims, meaning that the inheritance distribution order must be issued in such a way that it does not negatively affect the enforcement of the claim, i.e., it must include the identification data and addresses of potential obligors, however, for example, the masking of the tax identification number is expected based on Article 5(1)(c) of the GDPR, considering that it is not significant for the enforcement of the claim.

(37) Based on all of the above, the Authority establishes that Applicant 2 lawfully provided the inheritance distribution order to Applicant 1, based on the legal obligation under Article 6(1)(c) of the GDPR – which was established for them by Section 162 (5) of the Pp. – together with the personal data of the Applicant (name; mother's name; date of birth; address).

VI.2. Legality of Applicant 1's data processing

(38) The Authority holds the view that the legality of certain data processing operations carried out by Applicant 1 should be examined individually. On one hand, Applicant 1 became acquainted with the personal data contained in the inheritance distribution order and stores them in a copy received from the inheritance distribution order. On the other hand, Applicant 1 used the personal data of the

Applicant contained in the inheritance distribution order for the purpose of enforcing the claim, recorded them in their claim management system, and sent a payment reminder to the Applicant.

(39) The Authority holds the view that in the letter written by Applicant 1 to Applicant 2, as well as in the attached documents titled "Notification of Assignment" and "Declaration of Succession,"

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sufficiently substantiated the existence of the claim, the interest associated with its enforcement, that is, considering Section 162 (5) of the Civil Procedure Code (Pp.), as well as the explanations provided in the previous subsection, Respondent 1 could lawfully access the personal data of the Applicant as stated in the inheritance transfer order based on its legitimate interest.

(40)

According to the inheritance transfer order, the late [grandmother's] estate was fully transferred to the Applicant by the acting notary public; however, the basis for the transfer was not inheritance but a gift based on an agreement, the prerequisite of which was the notary's determination of the intermediate acquisition by the Applicant's mother, [...].

(41)

Respondent 1, considering the commentary related to Section 94 of the Inheritance Act (Hetv.) – in the inheritance transfer order, the notary referred to Section 94 of the Hetv. as the basis for his decision – concluded that in the case of a division agreement, the basis for the transfer is always inheritance. This led to the conclusion that based on the legal provision indicated in the inheritance transfer order, the basis for the transfer of the estate to the Applicant could only be inheritance, a presumption further supported by the fact that the estate was fully transferred to the Applicant. In his view, a full transfer of the estate can only occur to the heir, thus he considered the Applicant to be the heir of the late [grandmother]. Based on all this, he concluded that based on legitimate interest, he could lawfully process the Applicant's data as an heir for claim management purposes, and therefore sent a payment request to the Applicant.

(42)

Respondent 1 processed the Applicant's personal data based on Article 6(1)(f) of the GDPR, referring to the legitimate interest associated with the enforcement of the claim. He stated that his legitimate business interest was to collect the purchased claim from the debtors and, if necessary, to enforce his claim through legal means. For this reason, since the collection of the claim had not been completed, and since in his view the Applicant should be considered the heir of the late [grandmother], and thus the debtor of the claim, he did not comply with the Applicant's request for the deletion of personal data. In this context, he also referred to Article 17(3)(b) of the GDPR.

(43)

The Authority first deems it necessary to state that the inheritance transfer order, as a document issued by a notary public, qualifies as a public document under Section 323(1) of the Pp. According to Section 323(3) of the Pp, a public document proves the reality of the data and facts certified by it with full evidentiary force. Furthermore, according to Section 2(2) of the Hetv., the notary's procedure in the inheritance proceedings has the same effect as that of a first-instance court, meaning that the inheritance transfer order has the same effect as a judgment of a first-instance court, and the contents thereof are considered *res judicata*, which can only be contested in the context of legal remedies, provided that the laws allow for such.

(44)

Based on this, the Applicant's mother can be considered the heir of the late [grandmother], not the Applicant, since the agricultural lands constituting the objects of the estate were transferred to her on the basis of a gift resulting from an agreement. This fact is not altered by the possibility of interpreting the referenced legal provisions in such a way that the Applicant could be considered an heir.

(45)

Therefore, considering that the Applicant is not regarded as the heir of the late [grandmother]

according to the inheritance transfer order, Respondent 1 could not lawfully process the personal data of the Applicant for claim management purposes, as he is not the successor of the original debtor, and no performance can be expected from him. Consequently, it can be established that Respondent 1 has no legitimate interest in processing the Applicant's personal data for the purpose of claim enforcement; therefore, the Authority finds that Respondent 1 unlawfully processed the Applicant's personal data for this purpose, in violation of Article 6(1) of the GDPR.

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(46) The Respondent 1 denied the Applicant's request for deletion by referring to Article 17(3)(b) of the GDPR; however, it argued that in the absence of personal data, it would not be able to legally enforce its claim against the Applicant, and thus it processes the personal data necessary for the enforcement of the claim based on a legal obligation. According to the Authority, Respondent 1 should have referred to Article 17(3)(e) of the GDPR at this point, as it may have needed the data for the submission, enforcement, or defense of its legal claims. However, as the Authority established above, Respondent 1 unlawfully processed the Applicant's personal data for the purpose of enforcing its claim, as it cannot be considered an heir based on the inheritance transfer order, and thus should have deleted the Applicant's personal data from the claims management register at the request of the Applicant based on Article 17(1)(d) of the GDPR.

(47) Nevertheless, according to Respondent 1's reference, the inheritance transfer order is also considered an accounting document under Section 166(1) of the Accounting Act, given that it supports the accounting of an economic event (its record) and records the change in the obligated person's status. According to the Authority, data that cannot be deleted from documents qualifying as accounting documents under Section 166(1) of the Accounting Act, as per Section 169(6) of the Accounting Act, means that all personal data contained in these documents can be retained. The mandatory retention period lasts until the end of the 8th year from the closure of the case – which, according to Respondent 1, occurred in 2022. It should be emphasized, however, that while Respondent 1 is obliged to retain and store the inheritance transfer order and the personal data contained therein, it cannot perform any further operations on the personal data. Based on all of this, the Authority concludes that Respondent 1 lawfully retains and stores the Applicant's personal data in the inheritance transfer order in accordance with Article 6(1)(c) of the GDPR.

IV.3. Fulfillment of the Applicant's access request by Respondent 1

(48) In the access request dated April 14, 2022, the Applicant requested information from Respondent 1 regarding the personal data processed by Respondent 1, their source, the purpose of data processing, the legal basis, duration, the name and address of the data processor, and all activities related to data processing, as well as the legal basis and recipient in the case of data transfer. The Applicant specifically requested information regarding the content of the inheritance transfer order, including the source of the personal data contained therein and the legal basis for the processing of the data.

(49) Respondent 1 responded to the request, referencing the Information Act – based on which Respondent 1 should have recognized it as an access request – on April 22, 2022, adhering to the one-month deadline stipulated in Article 12(3) of the GDPR. In its response, it did not address all the data processing circumstances the Applicant wished to know, as it only provided information about the source of the Applicant's personal data, as well as stating that the Applicant is the obligated party for its claim – which can be considered the purpose of data processing – and that the processing of personal data does not require the Applicant's consent.

(50) According to Article 15(1) of the GDPR, the data subject has the right to receive information about the scope of their personal data being processed and the circumstances of the data processing if their personal data is being processed. Respondent 1 did not inform the Applicant about which specific personal data it processes, did not specify the legal basis for its data processing, nor the duration; it only referred to the purpose of data processing, and did not provide any information regarding the potential involvement of a data processor, nor about any data transfer and its recipient. Based on this,

the Authority concludes that Respondent 1 violated Article 15(1) of the GDPR by not providing the Applicant with the appropriate information regarding the processing of their personal data.

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IV.4. Fulfillment of the Access Request by Respondent 2

(51)

The Applicant submitted an access request to Respondent 2, stating that the inheritance transfer decree contained personal data, and therefore requested that Respondent 2 indicate the legal basis on which the inheritance transfer decree was issued and the personal data contained therein was sent to a third party. Furthermore, the Applicant requested that “if you were contacted regarding the debts of the late [grandmother], please also send me the balancing of interests concerning me, according to which my personal data was issued as an interested party not listed as an heir in the decree.”

(52)

In its decree dated May 19, 2022, Respondent 2 informed the Applicant about the background of the data transfer and that the inheritance transfer decree was sent to Respondent 1 based on the likelihood of the creditor's legal interest, as it was considered that Respondent 1 could be regarded as an interested party in the inheritance proceedings. It further stated that according to Article 6(1) of the GDPR, the processing of personal data is lawful if it is necessary for compliance with a legal obligation to which the data controller is subject or if the processing is necessary for the purposes of legitimate interests pursued by the data controller or a third party. In this context, it referred to Section 90 of the Inheritance Act, which states that the inheritance transfer decree must be sent to the interested party in the inheritance proceedings.

(53)

The Authority holds the view that the response given by Respondent 2 to the access request was not entirely clear, as it referred to both point (c) and point (f) of Article 6(1) of the GDPR, whereas, as a public authority, it cannot base its data processing necessary for the performance of its public tasks on point (f) of Article 6(1) according to the provisions of the GDPR. The mention of this legal basis hindered the Applicant's ability to understand precisely on what legal basis their personal data was transferred to Respondent 1.

(54)

Moreover, it is also unclear whether the legal provision referred to by Respondent 2 as a legal obligation, namely Section 90 of the Inheritance Act, can be invoked in the specific case, as – as the Applicant also disputed – it is not clear whether Respondent 1 can be considered an inheritance creditor, since during the ongoing inheritance proceedings, they did not declare their creditor claim – they acquired the claim itself only after the conclusion of the inheritance proceedings – thus, they do not meet the definition according to point (e) of Section 6(1) of the Inheritance Act. This, of course, does not affect the existence or legitimacy of the claim.

(55)

Furthermore, in response to the Authority's request, Respondent 2 has already stated that the legal provision prescribing the data transfer is Section 162(5) of the Civil Procedure Act, which the Authority has accepted as such.

(56)

Based on all of the above, the Authority finds that Respondent 2 violated the Applicant's right of access under Article 15(1) of the GDPR by not providing clear information to the Applicant regarding the legal basis on which their personal data in the inheritance transfer decree was transferred.

IV.5. Request for Imposition of a Fine

(57)

The Authority rejects the Applicant's request for the imposition of a data protection fine, as the application of this legal consequence does not directly affect the rights or legitimate interests of the Applicant, and such a decision by the Authority does not create rights or obligations for them;

therefore, regarding the application of this legal consequence falling within the scope of public interest enforcement – the

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Regarding the imposition of fines – the Applicant does not qualify as a client under Section 10(1) of the Administrative Procedure Act (Ákr.), thus there is no basis for submitting a request in this regard, and this part of the submission cannot be interpreted as a request.

IV.6. Interpretation of the Applicant's Request

(58) The Applicant requested the determination of their right of access ("failure of the Respondents to fulfill their obligation to respond") on the grounds that the Respondents' response did not contain a balancing of interests. In the Authority's view, the existence and adequacy of the balancing of interests should be assessed within the framework of the lawfulness of data processing; therefore, the Authority did not evaluate it in the context of ensuring the right of access. Furthermore, considering that in the case of Respondent 2, the legal basis for data processing was Article 6(1)(c) of the GDPR, there is no need for a balancing test supporting the lawfulness of data processing, while it was still possible to decide on the lawfulness of the data processing of Respondent 1 even in the absence of such a test.

IV.7. Legal Consequences

(59) The Authority partially upholds the Applicant's request and finds that Respondent 1 unlawfully processed the Applicant's personal data for the purpose of enforcing a claim, thereby violating Article 6(1) of the GDPR.

(60) The Authority partially upholds the Applicant's request and finds that Respondent 1 violated Article 15(1) of the GDPR by not fully responding to the access request. Due to these violations, the Authority holds Respondent 1 accountable under Article 58(2)(b) of the GDPR.

(61) The Authority partially upholds the Applicant's request and finds that Respondent 2 violated Article 15(1) of the GDPR by not providing clear information to the Applicant regarding the legal basis for the transfer of their personal data. The Authority holds Respondent 2 accountable for this violation under Article 58(2)(b) of the GDPR.

(62) The Authority, partially upholding the Applicant's request, instructs Respondent 1 under Article 58(2)(g) of the GDPR to delete the personal data processed in their claims management registry for the purpose of enforcing the Applicant's claim and to credibly prove to the Authority that this has been done.

(63) According to Section 75/A of the Information Act, the Authority exercises its powers as set out in Article 83(2)-(6) of the General Data Protection Regulation, taking into account the principle of proportionality, particularly in that, in the case of a first-time violation of the provisions regarding the processing of personal data – as defined in legislation or in a binding legal act of the European Union – the Authority primarily acts by warning the data controller or processor regarding the remedy of the violation, in accordance with Article 58 of the General Data Protection Regulation.

(64) The Authority does not find it necessary to impose a data protection fine against either Respondent 1 or Respondent 2. Both Respondents have violated the provisions of the GDPR for the first time. The Authority also does not find it necessary to apply a fine against Respondent 1, as according to Respondent 1's statement addressed to the Authority dated August 23, 2022, they refrained from further enforcement of the claim against the Applicant and removed the case from their registry, thus taking steps to remedy the consequences of the unlawful data processing.

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(65) The Authority has established, as stated above, that the Respondents violated the Applicant's right of access under Article 15 (1) of the GDPR. However, the Applicant did not request that the Authority compel the Respondents to fulfill their requests, and the Authority believes that the essential circumstances of the data processing contested by it can be understood from this decision. Therefore, the Authority does not consider it necessary to apply any further legal consequences beyond the finding of infringement.

(66) Based on all of the above, the Authority has decided as stated in the operative part.

V. Other Issues

(67) The Authority's jurisdiction is defined by Section 38 (2) and (2a) of the Infotv., and its competence extends to the entire territory of the country.

(68) The decision is based on Sections 80-81 of the Ákr. The decision becomes final upon its communication in accordance with Section 82 (1) of the Ákr.

(69) According to Section 112 of the Ákr., and Section 116 (1), as well as Section 114 (1), there is a right to legal remedy against the decision and the termination order through administrative litigation.

(70) The rules of administrative litigation are defined by Act I of 2017 on Administrative Litigation (hereinafter: Kp.). According to Section 12 (1) of the Kp., administrative litigation against the Authority's decision falls under the jurisdiction of the court, and based on Section 13 (3) a) aa) of the Kp., the Metropolitan Court is exclusively competent for the case. According to Section 27 (1) b) of the Kp., legal representation is mandatory in cases falling under the jurisdiction of the court. According to Section 39 (6) of the Kp., the submission of the statement of claim does not have a suspensive effect on the enforcement of the administrative act.

(71) Section 29 (1) of the Kp. and, in this regard, Section 604 of the Pp. apply, and according to Section 9 (1) b) of Act CCXXII of 2015 on the General Rules of Electronic Administration and Trust Services (hereinafter: E-ügyintézési tv.), the client's legal representative is obliged to maintain electronic communication.

(72) The time and place for submitting the statement of claim are determined by Section 39 (1) of the Kp. Information regarding the possibility of requesting a hearing is based on Sections 77 (1)-(2) of the Kp. The amount of the administrative litigation fee is determined by Section 45/A (1) of Act XCIII of 1990 on Fees (hereinafter: Itv.). The party initiating the proceedings is exempt from the prior payment of the fee under Section 59 (1) and Section 62 (1) h) of the Itv.

Budapest, March 2, 2023

Dr. Péterfalvi Attila

President

Associate Professor